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UNIVERSITET

Guidelines for the Processing of Matters Relating to Suspected Deviation from Good Research Practice

Type of document: Guidelines

Definition of the type of regulatory document: Guidelines establish how someone must or should act in the area covered by the guidelines. A “must” rule is to be complied with, whereas the nature of a “should” rule is more of a strong recommendation, which means that in exceptional cases something can be done in another way.

Approved by: Vice-Chancellor

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Organizational unit responsible: Office of the Vice-Chancellor

Responsible administrator: policy officer Jessica Salomonsson
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Brief description: The Vice-Chancellor clarifies how cases concerning suspected deviations from good research practice are handled at Lund University.

Vice-Chancellor

Guidelines for the Review of Suspected Deviation from Good Research Practice at Lund University

In accordance with the Act on Responsibility for Good Research Practice and the Examination of Research Misconduct (2019:504) (hereafter referred to as the Act on Responsibility for Good Research Practice) and Chapter 1, Section 17 of the Higher Education Ordinance (1993:100), Lund University issues the following Guidelines that must be applied in the review of suspected deviations from good research practice.

1. General

1.1 At Lund University, all research must follow good research practice in order to avoid, among other things

- harm to people, animals, society and the environment in connection with research
- the spread of incorrect research results, which in turn causes harm, poorer quality in research and wastage of resources
- damage to confidence in research, both in the research world and wider society, which in turn could lead to a deterioration in conditions for conducting research
- damage to trust between researchers in a way that threatens key functions in the research community
- undermining of the academic qualification system
- non-completion of commenced research or non-use of collected data (e.g. due to lacking a permit)

- penalisation of the researcher or entity responsible for research.

1.2 All staff members who participate in research activities at Lund University are responsible for the observance of good research practice by following the rules that apply to the research. Some rules are contained in legally binding documents such as laws, ordinances and regulations. Certain types of research require a special authorisation or permit. In addition, there are codes of conduct and guidelines that refer to ethical norms but are not legally binding as such, e.g. the ALLEA Code of Conduct and the Declaration of Helsinki. The ethical requirements that apply for the research must be fulfilled even in those cases where they are not directly derived from legally binding regulations.

1.3 Suspected deviations from good research practice at Lund University must be immediately reported to the Vice-Chancellor or directly to the National Board for Assessment of Research Misconduct if there is suspected research misconduct. The head of department/dean or equivalent has a specific responsibility for ensuring this is done.

1.4 At Lund University, the Deviations from Good Research Practice Review Board (hereafter referred to as the Board) must examine deviations from good research practice in accordance with Chapter 1, Section 17 of the Higher Education Ordinance, including cases that the National Board for Assessment of Research Misconduct hands over to the University in accordance with Chapter 11 of the Act on Responsibility for Good Research Practice.

2. Delimitations

2.1 Lund University reviews suspected deviations from good research practice in the case of research conducted in the University's activities by researchers who are employed at the University, in accordance with delimitations in the Higher Education Ordinance. In exceptional cases, Lund University may review deviations from good research practice regarding research conducted in the University's activities by researchers who are not employed at Lund University but have a clear affiliation with the University.

2.2 If a report against a doctoral student includes both suspicions of deviation from good research practice and deception in the assessment of study performance, the part relating to study performance is processed by the Disciplinary Board and the part relating to suspicion of deviation from good research practice is processed by the Board.

2.3 Review of deviation from good research practice may not be based on circumstances or publications that are more than ten years old when the case is initiated, unless there are specific reasons for a review.

3. Definitions

3.1 **Researcher**, according to these Guidelines, refers to individuals who are currently undertaking, or have completed, third-cycle education.

3.2 **Research misconduct**, in accordance with Section 2 of the Act on Responsibility for Good Research Practice, refers to *a serious deviation from good research practice in the form of fabrication, falsification or plagiarism that is committed intentionally or through gross negligence when planning, conducting or reporting research.*

3.3 **Other deviation from good research practice** refers to *violations that risk damaging, or damage, the integrity of the research process, research or researchers, and that is committed intentionally or through gross negligence when planning, conducting or reporting research.* Good research practice at Lund University is based on four fundamental principles, derived from The European Code of Conduct for Research Integrity, ALLEA (revised 2023):

- Reliability in ensuring the quality of research, reflected in the design, methodology, analysis and use of resources
- Honesty in developing, undertaking, reviewing, reporting and communicating research in a transparent, fair, full and unbiased way
- Respect for colleagues, research participants, animals, society, ecosystems, cultural heritage and the environment
- Accountability for the research from idea to publication, for its

management and organisation, for training, supervision and mentoring, and for its wider impacts.

3.3.1 Based on the four fundamental principles, examples of other deviation from good research practice include:

- manipulating authorship by unfounded claims of authorship, unfounded exclusion of someone from co-authorship or other deviations from publishing ethics
- re-publishing large portions of one's own earlier publications, without referring to or citing the original
- obstructing scientific or research ethics reviews, for example by withholding research material or not keeping data from studies in a secure manner
- inducing or trying to influence someone into actions that fall under deviations from good research practice
- carrying out reprisals against someone who has reported or presented information or suspicions relating to deviations from good research practice
- reporting suspicions with the sole purpose of discrediting someone else
- using research material contrary to current contracts or agreements
- conducting research without, or in breach of, the required permit
- unauthorised use of information given in confidence
- giving misleading information about someone's contribution to research
- destroying samples or in some other way spoiling another researcher's ongoing work
- acting in a way that shows a lack of respect for those involved in research, for example in the collection, processing or reporting of research
- hiding the use of artificial intelligence (AI) in the creation of content or drafting of publications (in accordance with the Swedish Research Council's publication *Good Research Practice 2024*)

- hiding research misconduct or other deviations from good research practice or concealing deficient handling of such deviations
- submitting false information in applications for research funding
- carrying out research abroad which does not meet the ethical standard that applies at Lund University.

The list of examples above is not to be regarded as exhaustive.

4. Deviation from Good Research Practice Review Board at Lund University

4.1 The Board's assignment is to investigate and prepare Vice-Chancellor's decisions regarding reported suspicions of other deviation from good research practice at Lund University.

4.2 The Board must consist of five teaching staff representatives, one legal counsel from the university-wide Legal Division and one member well-versed in the law who is, or has been, a permanent judge. The teaching staff representatives must have high research expertise and integrity and be employed at Lund University. One of these staff representatives is appointed as chair and one as vice-chair.

4.3. All members are appointed by the Vice-Chancellor. The teaching staff representatives are appointed after consultation with the faculties of Lund University.

4.3.1 There must be a substitute for the member who is well-versed in the law. The substitute must be, or have been, a permanent judge. The substitute is to be appointed according to the same procedure and for the same period as the member who is well-versed in the law.

4.3.2 A retired teaching staff member at Lund University may be appointed as a teaching staff representative and in this case the current position at the University need not be a teaching position.

4.3.3 The term of office for members is three years and can be extended. If a member needs to be replaced, a new member must be appointed within the current term of office.

4.3.4 If necessary, the Vice-Chancellor can decide to temporarily replace one or more of the Board's members, including the chair.

4.4 The Board is quorate when at least four members are present, among them the chair or vice-chair, the member who is well-versed in the law or their substitute and one more teaching staff representative. Each of the members can register a dissenting opinion in accordance with Section 30 of the Administrative Procedure Act (2017:900). Decisions are determined by a simple majority. The chair has the casting vote in the event of a tied vote.

4.5 When a doctoral student has filed a report on a matter or is the subject of an investigation, a representative of the Lund University Student Union Association, with the right to be present and make statements at the Board's meetings, must participate when the case is processed.

4.6 The Board can decide to give individuals the right to attend and make statements, when the Board finds this appropriate.

4.7 The Board must be assisted by one or more administrative staff members.

4.8 In other respects, the Board decides on its own working methods

5. Review of suspected deviation from good research practice at Lund University

5.1 A case is initiated at Lund University once a report of suspected deviation from good research practice is received by the Board.

5.2 A person who is the subject of a filed report must be notified about this as soon as possible.

5.3 The Board must inform the faculty management concerned or equivalent about the case as soon as possible. The faculty concerned

or equivalent must ensure that the person or persons in question receive the support that is required in accordance with Chapter 1, Section 16 of the Higher Education Ordinance.

5.4 If the Board finds that there are clearly no grounds for the suspicion or that important information in the case is missing, the Board can, without further investigation, propose that the Vice-Chancellor dismiss the case

6. Investigation of suspected deviation from good research practice

6.1.1 The investigation must be implemented as soon as possible and with consideration for the personal integrity of all those involved.

6.1.2 When conducting the investigation, the Board must ensure, in accordance with the provisions of the Administrative Procedure Act regarding disqualification, that there are no conflicts of interest

6.2 In those cases where the suspicion concerns research misconduct, the Board on receiving the report must check whether the reported research is funded by the Public Health Services (PHS), USA. If this is the case, it must also be processed in accordance with the *Guidelines for Suspected Research Misconduct in Research Funded by Public Health Services, USA*.

6.3 During the investigation, facts must be collected and the reported party given the opportunity, within a prescribed period, to make a statement on all the material of significance to the decision, before the decision is taken, unless it is clearly unnecessary (Section 25 of the Administrative Procedure Act).

6.4.1 If there are suspicions of research misconduct, the Board must take a decision to transfer the documents in the case that concern such suspicions to the National Board for Assessment of Research Misconduct (delegated from the Vice-Chancellor to the Board, STYR 2020/843).

6.4.2 In the case of suspicions of both research misconduct and other deviations from good research practice, the University must review the part concerning other deviations, whereas the National Board for

Assessment of Research Misconduct reviews the part concerning misconduct.

6.5 The Board can, if necessary, obtain statements from one or more external experts, who are appointed by the Board. External experts must not be employed at Lund University.

6.6 The Board may during an ongoing investigation collect information from other public authorities, such as the Ethics Review Appeals Board.

6.7 The investigation must result in an assessment of whether deviation from good research practice has occurred with a proposed decision. In the investigation it may also emerge that the researcher under investigation cannot be exempted from criticism, even though there is no deviation from good research practice. If there is a deviation, it must also be stated whether the deviation is of a serious type and if it has been committed with intent or though gross negligence.

6.8 If someone who is a member of the University Management or the Board is reported, the University Board must decide how the case will be processed.

6.9 The University's faculties or equivalent must at the request of the Board provide assistance regarding the case. The dean or equivalent is responsible for ensuring this occurs

7. Follow-up and measures

7.1 The Board is responsible for notifying the research funding bodies, public authorities and journals concerned about decisions taken by the National Board for Assessment of Research Misconduct regarding an occurrence of research misconduct, or when the National Board's decision states that a serious deviation from good research practice in the form of fabrication, falsification or plagiarism has occurred without intent or gross negligence being noted. Information must also be provided stating that the decision can be appealed (Section 14 of the Act on Responsibility for Good Research Practice).

7.2 In cases where the Board notes deviation from good research practice, the Board is responsible for notifying the research funding bodies, public authorities and journals concerned.

7.3 The faculty or equivalent is responsible for notifying other parties concerned within the research community.

7.4 Any measures taken as a result of a decision regarding deviation from good research practice are managed by the faculty concerned.

7.5 In cases where deviation from good research practice has been noted, or in cases where criticism has been stated, the faculty must within six months of the decision entering into force, report to the Board on which measures have been taken as a result of a decision by the National Board for Assessment of Research Misconduct or the Vice-Chancellor.

7.6 The Board is responsible for ensuring that measures that have been taken or are intended to be taken as a result of a deviation from good research practice are reported to the National Board for Assessment of Research Misconduct in accordance with Section 13 of the Act on Responsibility for Good Research Practice.

7.7 The Board is responsible for annual reporting of the University's reviews of deviations from good research practice to the National Board for Assessment of Research Misconduct, in accordance with Chapter 1, Section 18 of the Higher Education Ordinance.

7.8 The Board contributes relevant information about ongoing matters within research funded by PHS funds in Lund University's annual reporting to the Office of Research Integrity (ORI).

8. Entry into force

These Guidelines enter into force on 30 April 2026 and replace the previous Guidelines dated 23 October 2025 (STYR 2025/1270).